

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: July 22, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER DENYING MOTION FOR INTERIM RELIEF TO PREVENT SPOILIATION AND INTIMIDATION

On July 13, 2025,¹ Complainant filed a Motion for Interim Relief to Prevent Spoliation and Intimidation² (“Motion for Relief”). On July 21, 2025, Respondent filed its Response to Motion for Interim Relief. (“Motion for Relief Response”). After considering the Motion for Relief and the Motion for Relief Response, the Motion for Relief is **DENIED** because it seeks relief that I am unable to grant.

I. BACKGROUND

A. Pleadings

Complainant filed its Verified Complaint on June 9, 2025. In short, Complainant, a shipper, alleges that Respondent, a non-vessel ocean common carrier and an ocean transportation intermediary, violated the Shipping Act by holding two of Complainant’s containers for “past-due invoices.” (Complaint, at 1-4). The first container, no. CSHU4047424, was allegedly held from January 30, 2025, through February 25, 2025. (Complaint, at 6-7). The second container, no. BSIU8431017 was held from March 31, 2025, until some unclear date (Complaint, at 7-9) –

¹ On July 10, 2025, Complainant filed its Motion for Interim Relief to Prevent Spoliation and Intimidation (the “Original Motion”). The Original Motion was denied without prejudice because there was no statement of consultation, or did it contain any supporting evidence. (*See* July 11, 2025, Order Denying Without Prejudice Motion for Interim Relief to Prevent Spoliation and Intimidation).

² Also on July 10, 2025, Complainant filed its Notice of Threatened Spoliation and Witness Intimidation (“Notice of Threat”). The Notice of Threat does not appear to request any relief other than to “preserve it in the official record.” Therefore, I issue no order regarding the Notice of Threat.

possibly July 14, 2025, as discussed below. Complainant alleges that it suffered damages as a result of Respondent's unlawful actions, and is entitled to reparations. (Complaint, at 20-21)

Respondent filed its Verified Answer on July 8, 2025. In its Answer, Respondent denied acting as a regulated entity as to the two containers at issue. (Answer, at 1-2). Respondent admits that the cargo "was temporarily restrained on a clear legal basis," but argues that it was entitled to do so. (Answer, at 4-5). Respondent argues that Complainant's actions caused Respondent economic harm. (Answer, at 9-10).

B. Motion for Relief

On July 13, 2025, Complainant filed the present Motion for Relief. Complainant alleges that on July 10, 2025, its principal, Ms. Jessie Thodde, and a truck driver, Mr. Anthony Garcia were in a warehouse operated by Respondent to pick up Complainant's merchandise. Respondent's principal, Mr. Ricky Villena, approached Ms. Thodde and Mr. Garcia, asked if they were looking for trouble, and said that everything is scheduled to be destroyed on Monday (presumably, July 14, 2025). (*See* Motion for Relief, at 2-3; *see also* Ex. A (Affidavit of Jessie Thodde); Ex. B (Affidavit of Anthon Garcia)). Ms. Thodde and Mr. Garcia both signed declarations stating that they found Mr. Villena's statements to be threatening. (*See* Motion for Relief, Exs. A & B). Based on the allegations surrounding the July 10, 2025, encounter, Complainant filed the Motion for Relief.

In the Motion for Relief, Complainant seeks several forms of relief. First, Complainant asks for an order requiring Respondent to "cease and desist" from destroying or otherwise damaging Complainant's cargo. Second, Complainant requests an order requiring Respondent to refrain from any further verbal or physical contact with Complainant except through counsel. Third, Complainant asks for an order requiring Respondent to preserve communications related to the threatened destruction of cargo. And finally, Complainant seeks an inventory of all of Complainant's cargo that Respondent is holding. For support, Complainant asserts that 46 C.F.R. § 502.141(j) allows the Commission to issue protective orders, and the Administrative Procedures Act, 5 U.S.C. § 556(c), generally permits presiding officers at hearings to oversee and regulate the proceedings before him or her, which includes preserving the status quo.

Respondent filed its Motion for Relief Response on July 21, 2025. In it, Respondent asserts that Ms. Thodde arrived at Respondent's warehouse unannounced on July 10, 2025, and was being confrontational. (Motion for Relief Response, at 1-2). Regarding Mr. Villena's alleged threat to destroy Complainant's cargo, Respondent asserts that Ms. Villena was referencing an email Respondent sent to Complainant on July 3, 2025, informing Complainant that Respondent would no longer be responsible for Complainant's unclaimed merchandise after July 14, 2025. (Motion for Relief Response, at 1, *see also* Ex. C (July 3, 2025, email)). In any event, Complainant allegedly removed its remaining cargo by July 14, 2025. (Motion for Relief Response, at 2). Respondent discusses the elements that courts will consider in ordering injunctive relief, such as likelihood of success on the merits or irreparable harm (Motion for Relief Response, at 2 (*see, e.g., Starbucks Corp. v. McKinney*, 602 U.S. 339, 346 (2024) (citations omitted))), and asks that the Motion for Relief be denied.

II. DISCUSSION

Complainant Motion for Relief must be denied because it appears to be requesting relief that I am unable to grant, namely a preliminary injunction. In general, “[t]he office of a preliminary injunction is to preserve, the status quo until, upon final hearing, the court may grant full relief.” (*Toledo, A. A. & N. M. Ry. Co. v. Pennsylvania Co.*, 54 F. 730, 741 (C.C.N.D. Ohio 1893) (Taft, Circuit Judge); *see also Starbucks Corp.*, 602 U.S. at 346 (citations omitted) (stating that the “purpose of a preliminary injunction is merely to preserve the relative positions of the parties until a trial on the merits can be held.”)). This is exactly what the Complainant seeks – an order for “interim relief” from the Commission to preserve the “status quo,” and protect Complainant’s cargo from destruction³ “pending further order of the Commission.” (*See Motion for Relief*, at 3, 6; *see also Motion for Relief*, Caption). Complainant, however, must seek injunctive relief, including a preliminary injunction or temporary restraining order, from a U.S. District Court. (46 U.S.C. § 41306) (“After filing a complaint with the Federal Maritime Commission under section 41301 of this title, the complainant may bring a civil action in a district court of the United States to enjoin conduct in violation of this part.”)).

Complainant argues that 46 C.F.R. § 502.141(j) gives me authority to grant the Motion for Relief. This is not persuasive. The plain language of the cited rule makes clear that my authority to issue protective order is in relation to discovery abuses. The cited rule states:

(j) Protective orders.

(1) In general. A party or any person from whom discovery is sought may move for a protective order. The motion must include a certification that the movant has in good faith conferred or attempted to confer with other affected parties in an effort to resolve the dispute without Commission or presiding officer action. The Commission or presiding officer may, for good cause, issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense, including one or more of the following:

(i) Forbidding the disclosure or discovery;

(ii) Specifying terms, including time and place, for the disclosure or discovery;

(iii) Prescribing a discovery method other than the one selected by the party seeking discovery;

(iv) Forbidding inquiry into certain matters, or limiting the scope of disclosure or discovery to certain matters;

³ Complainant also asks for an order preventing Respondent from engaging in verbal of physical contact with Complainant. The analysis in the main text discussing preliminary injunctions related to cargo also applies to the injunction of any conduct.

- (v) Designating the persons who may be present while the discovery is conducted;
 - (vi) Requiring that a deposition be sealed and opened only on Commission or presiding officer order;
 - (vii) Requiring that a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only in a specified way; or
 - (viii) Requiring that the parties simultaneously file specified documents or information in sealed envelopes, to be opened as the Commission or presiding officer directs.
- (2) Ordering discovery. If a motion for a protective order is denied in whole or in part, the Commission or presiding officer may, on just terms, order that any party or person provide or permit discovery.

(46 C.F.R. § 502.141(j)). This action has not reached discovery. The parties have not yet filed a joint status report,⁴ nor has a scheduling order been issued. Therefore, because § 502.141(j) is inapplicable to this situation, it does not allow me to grant the Motion for Relief.

The Complainant also cites § 556(c) of Administrative Procedures Act as giving me the authority to grant the Motion for Relief. The cited provision states:

- (c) Subject to published rules of the agency and within its powers, employees presiding at hearings may--
- (1) administer oaths and affirmations;
 - (2) issue subpoenas authorized by law;
 - (3) rule on offers of proof and receive relevant evidence;
 - (4) take depositions or have depositions taken when the ends of justice would be served;
 - (5) regulate the course of the hearing;
 - (6) hold conferences for the settlement or simplification of the issues by consent of the parties or by the use of alternative means of dispute resolution as provided in subchapter IV of this chapter;

⁴ The parties are reminded that their joint status report and proposed schedule are due 15 days after the Answer was filed. (Initial Order, at 1). The Answer was filed July 8, 2025. Therefore, the joint status report and proposed schedule are due **July 23, 2025**.

- (7) inform the parties as to the availability of one or more alternative means of dispute resolution, and encourage use of such methods;
- (8) require the attendance at any conference held pursuant to paragraph (6) of at least one representative of each party who has authority to negotiate concerning resolution of issues in controversy;
- (9) dispose of procedural requests or similar matters;
- (10) make or recommend decisions in accordance with section 557 of this title; and
- (11) take other action authorized by agency rule consistent with this subchapter.

(5 U.S.C. § 556(c)). While this provision generally gives presiding officers authority to gather and consider evidence, regulate or oversee a hearing, and issue recommended decisions, it does not give a presiding officer the authority to order injunctive relief. Moreover, the text of § 556(c) states that a presiding officer's authority is subject to the agency's rules. Nothing in the Shipping Act allows me to issue preliminary injunctions.⁵

III. CONCLUSION

For these reasons, I find that I do not have the authority to grant the relief requested in the Motion for Relief. Therefore, the Motion for Relief is **DENIED**.

This Order does not address Complainant's Motion for Summary Judgment. The parties are reminded of their obligation to submit a joint status report and proposed schedule by **July 23, 2025**. (Initial Order, at 1).

Richard C.
Ambrow Jr -S

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Richard Ambrow
Administrative Law Judge

⁵ Respondent asserts that Complainant removed all cargo from Respondent's warehouse. (Motion for Relief Response, at 2). If that is true, then the Motion for Relief may also be **DENIED AS MOOT**. There would be no need for an order to preserve the cargo from destruction, or an inventory of cargo, as the cargo is no longer in Respondent's possession. Further, there would be no reason for the principals of Complainant and Respondent to encounter each other physically if the cargo is no longer in Respondent's possession.